

THE MARTYRDOM OF NURSE CAVELL



THE LIFE STORY OF THE
VICTIM OF GERMANY'S
MOST BARBAROUS CRIME.

7^d NET

THE MARTYRDOM OF NURSE CAVELL



THE LIFE STORY OF THE
VICTIM OF GERMANY'S
MOST BARBAROUS CRIME.

7^d NET

The Project Gutenberg eBook of The martyrdom of Nurse Cavell

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The martyrdom of Nurse Cavell

Author: William Thomson Hill

Release date: May 22, 2022 [eBook #68149]

Most recently updated: October 18, 2024

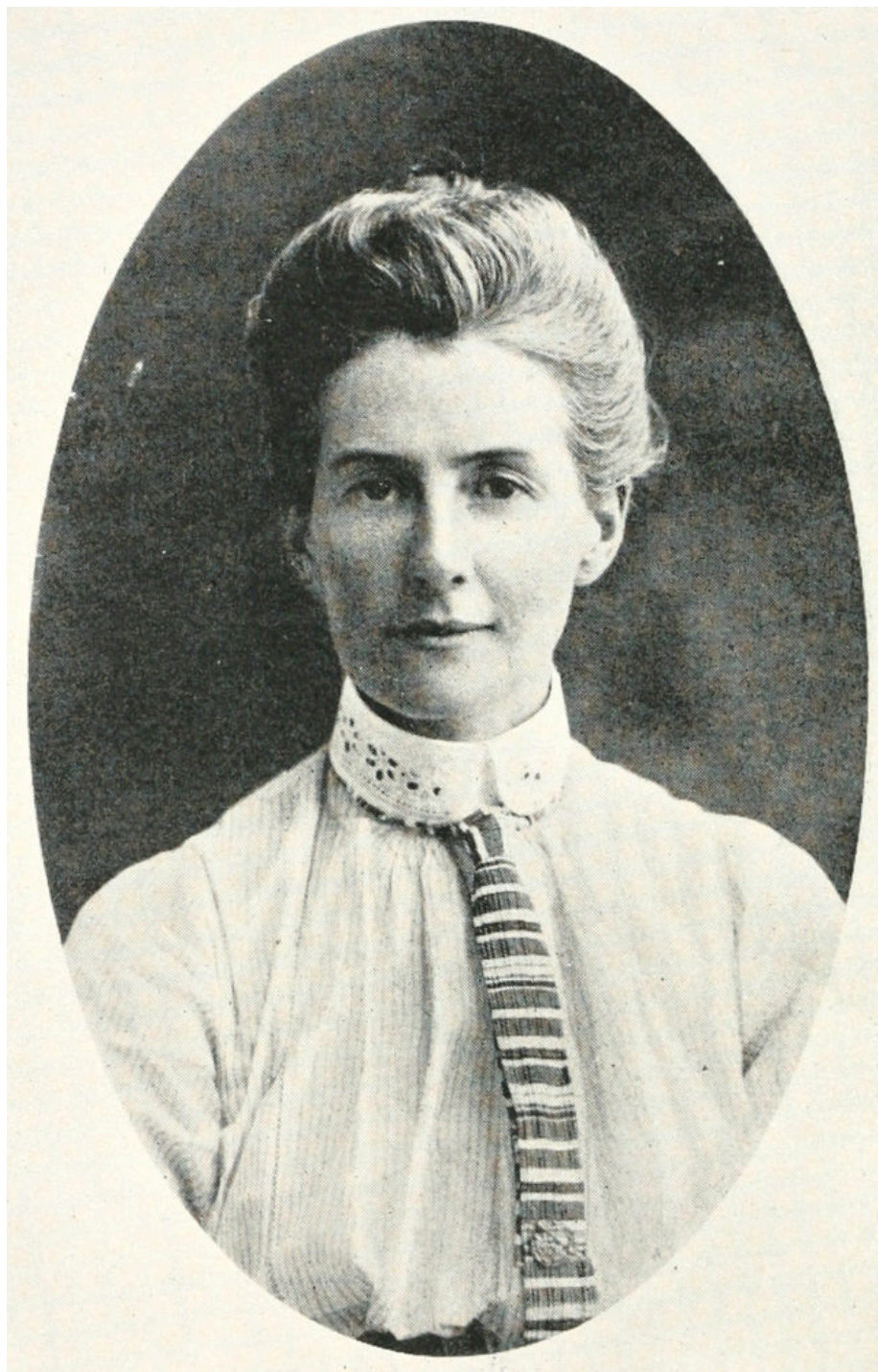
Language: English

Original publication: United Kingdom: Hutchinson & Co., 1915

Other information and formats: www.gutenberg.org/ebooks/68149

Credits: Tim Lindell and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/American Libraries.)

*** START OF THE PROJECT GUTENBERG EBOOK THE
MARTYRDOM OF NURSE CAVELL ***



Frontispiece.
By the courtesy of the Illustrated London News.

NURSE CAVELL.

The Martyrdom of Nurse Cavell.

*The Life Story of the Victim of
Germany's Most Barbarous Crime.*

By William Thomson Hill.



WITH ILLUSTRATIONS.



LONDON: HUTCHINSON & CO.
PATERNOSTER ROW 1915

NURSE CAVELL'S LAST MESSAGE TO THE WORLD.

“But this I would say, standing as I do in view of God and eternity, I realise that patriotism is not enough. I must have no hatred or bitterness to anyone.”

LIST OF ILLUSTRATIONS.

<u>The latest portrait of Nurse Cavell.</u> (<i>From Photo Copyright Farringdon Photo Company</i>)	(<u>see cover</u>)
<u>Nurse Cavell</u> (<i>Photo by courtesy of Illustrated London News</i>)	<u>Frontispiece</u>
<u>The Rev. Frederick Cavell, father of Nurse Cavell.</u> (<i>Daily Mirror Photograph</i>)	facing page <u>16</u>
<u>Mrs. Cavell, mother of Nurse Cavell.</u> (<i>Daily Mirror Photograph</i>)	” <u>17</u>
<u>Nurse Cavell when a child, with her mother and elder sister.</u> (<i>Photo Copyright Farringdon Photo Company</i>)	” <u>32</u>
<u>The Rectory, Swardeston, where Nurse Cavell was born.</u> (<i>Daily Mirror Photograph</i>)	” <u>33</u>
<u>Nurse Cavell in her garden.</u> (<i>Daily Mirror Photograph</i>)	” <u>48</u>
<u>Nurse Cavell, from a photograph taken in Brussels.</u> (<i>Photo Copyright Farringdon Photo Company</i>)	” <u>49</u>

CHAPTER I.

CHILDHOOD.

In the early seventies there were living at the country rectory of Swardeston, near Norwich, a clergyman and his wife and little family. There was a "New" and an "Old" Rectory. Both are still standing, much as they were then, except that the trees are older, and the "New" Rectory has long ago lost any signs of newness. It is one of the ways of Old England to call some of its most ancient things New, as if it could never learn to tolerate change kindly, even after centuries of wont.

There is a Newtimber Place in Sussex whose walls were built before the Armada. There is a New Building in Peterborough Cathedral which was completed before the Reformation. New Shoreham took the place of Old Shoreham before Magna Charta was signed.

The Rector, the Rev. Frederick Cavell, lived with his family at the New Rectory. It is a pleasant sunny house with a large garden. Such parsonages are common in all the unspoiled rural parts of England. A little gate leads to the churchyard close by.

In a great city no man would live willingly close by a cemetery. In such a village as Swardeston the nearness of the graveyard is a consecration. New graves appear among the old ones from time to time. The oldest of these others have faded gently into the grass. Nobody is left to tend them or to remember whose bones they cover. Yet the history of many a family can be traced back for three centuries on the lichen-covered stones.

Some day, when the war is over, another grave may be dug in this quiet spot. If the poor mutilated frame of Edith Cavell is ever permitted to be brought back home, her countrymen will come here to look upon the place where she lies. In this October of 1915 she sleeps in a land ravaged by war,

and those who killed her will not stoop even to the tardy pity of giving back her body.

But in those early seventies the village churchyard was not a place of sadness to the Rectory children. They played hide-and-seek among the sloping tombstones. The church and churchyard were, as they still are, the centre of the village life. Gay doings, such as a wedding, took place under the shadows of the elms and yews.

The whole community assembled there on any day of special interest. The churchyard was the Trafalgar Square of Swardeston. For it was not remote from the houses, as many village churchyards are. Norfolk labourers swung their heels on the wall in the long evenings of the days before village institutes and reading rooms were invented.

In these early seventies the village talk still harked back sometimes to the War of the French and Prussians. Its politics dealt with such names as “Dizzy” and Gladstone and Joseph Arch, the agricultural reformer—and, what was more to the point, a Norfolk man. In later years the village church saw the celebrations of Queen Victoria’s two Jubilees and King Edward’s Coronation—“a Norfolk landlord, and a rare good ’un,” as they liked to say in Swardeston.

CHAPTER II

LIFE IN THE RECTORY.

Home life in the Rectory was tinged, as was that of most English homes at the time, with Evangelical strictness. On Sunday all books, needlework, and toys were put away. The day began with the learning of collect or Catechism. As soon as the children were big enough they attended services in the morning and afternoon.

Evening services were not yet introduced in Swardeston. Light was not cheap, and the way across the country fields to church was no adventure for Sabbath clothes on dark winter nights. Thus the closing hours on Sunday were home hours for Rectory and village. Let those who have no memories of such times scoff if they think fit. A memory is better than a jest.

Edith Cavell's father was Rector of this parish for more than fifty years. He is dead now, but the villagers remember him well. His portrait shows him with a mouth and chin of unusual firmness. His eyes are kindly, but there is little sense of humour about them. It is notably the face of an upright man. Surely capable of sternness, he would be just to the point of inexorableness unless his face belies him. A sense of duty is implicit in every line; and we have the best of reasons for knowing that he transmitted this part of his character to his daughter Edith.

"The clever Miss Cavell" she was called in later years when she worked at a London hospital; but a more dominant characteristic was a rigid insistence upon what she deemed to be right. This was the constant theme of the father's sermons to his village flock. He would not hesitate to reproach from the pulpit any member of the congregation, whatever his station, whom he considered guilty of grave fault.

The mother (who is now eighty years old, and lives very quietly at Norwich) brought a gentler influence to bear upon the Rectory life. There is

a picture of her with two of her little girls. The mother wears the wide flounces which to-day are among the earliest memories of the "Men of Forty." Flounces that were a protection and a promise. Something for little hands to cling to when the legs were not yet sure of their way. These flounces made a royal road from earth to the children's heaven. The grown-up world far out of reach was always within call of a pull at the ample skirts.

Mrs. Cavell was a happy mother, and her children were happy too. So early as the days we are speaking of her eyes had something wistful in them. It was almost as if some inner consciousness had told her then of the distant, poignant future.

So the family grew up in a contented, well-ordered home, with plenty of outdoor games and sunshine, such as country children have. Long afterwards, in the midst of London slums, Edith Cavell would talk of the ripening blackberries far away in the Norfolk lanes, and of the great jam-making times which followed.

CHAPTER III.

WORK IN LONDON.

Like Charlotte Brontë, another vicar's daughter, Edith Cavell first learned something of the wider world in a Brussels school. It was commoner then than now—meaning by “now” before the war—for English girls to be sent to Belgium to school. Charlotte Brontë's Brussels life has left us at least one imperishable book. Edith Cavell has left no written memorials of those times; but if we would reconstruct her life we may imagine some such background as that of “Villette”: the strangeness of a foreign city, fascinating by its novelty yet repelling by alien atmosphere.

The lot of a school-girl is not too happy at the best among new companions. When their language and ways are those of a foreign country they can become a source of torture to a sensitive child. Some of these school-girl irritations Edith Cavell had to bear; yet such early annoyances evidently left little mark on her, for she returned many years later to Brussels of her own free will, and conquered the affections of the Belgians a second time.

Edith Cavell's early womanhood was spent in London—at the London Hospital, the St. Pancras Infirmary, and the Shoreditch Infirmary in Hoxton. Her training was obtained at the London Hospital, the great institution in the Whitechapel Road which is now nursing many wounded soldiers. The women who train in this hospital pass through a hard school. All hospital nurses work hard, but the nurses who come from “The London” think they know more of the strain of their calling than any others.

“The London” proposes to raise a memorial to Nurse Cavell. It is their right and hers that this should be done. For “The London” gave her the thorough training which enabled her to become the skilful teacher of others, and to instruct the nurses who should succour with equal care the wounded of all nations.

At the end of her arduous training at the London Hospital in 1896, Miss Cavell went to St. Pancras Infirmary as Night Superintendent. She stayed there for a little more than three years. Then she became Assistant Matron at the Shoreditch Infirmary in Hoxton. She left Hoxton in 1906 to start the work in Brussels which ended only with her cruel death.

Including the training years at the London Hospital, Edith Cavell had given twenty-two years to nursing the sick. She was twenty-one years old when she began this work. She was forty-three when she met her death. Thus she had given up the best years of a woman's life without a break, save for the occasional precious holidays, of which we shall say a word presently.

The work in London was one of unvarying routine in the most dismal surroundings. Nothing but a real devotion to the task could have made the monotony tolerable.

The writer asked one of those who worked with her for part of this time what was the reason that decided Edith Cavell to become a nurse. "She felt it was her vocation," was the simple answer; "isn't that enough?" The vocation, in these great London infirmaries, consisted in preserving a cheerful face day in and day out; in ruling, with kindness but also with firmness and an unfaltering tact, old men and women, children from the poorest slums; in being constantly in contact with pain and suffering and in the near presence of death. Those who remember her work in London—and they are very many—speak of her unselfishness and of a shy pride about the details of her labours.

What she did for her patients she liked to be a secret between herself and them. She would follow up the "cases" to their homes. The Matron and her fellow-nurses guessed some of these acts of week-day holiness; but Nurse Cavell never spoke of them. She went about doing good among the neat beds of the wards and in the unlovely surroundings of the neighbouring streets, doubtless thinking sometimes of the Norfolk village where the sun was shining beyond the fog, yet never letting the patients see that she had any thoughts except for them.

But with this sympathy went a rare strength of mind. Her name "Clever Miss Cavell" was not used in envy. It was a simple recognition of the fact that she had what is called a capable brain. She always knew what to do in a

difficult situation. A fellow-nurse in trouble was always advised to consult Miss Cavell.

CHAPTER IV.

UPHILL WORK IN BRUSSELS.

Edith Cavell needed all her strength of character in her first years in Brussels. When she went there nine years ago as Matron of a Surgical and Medical Home, English nursing methods were not appreciated on the Continent as they are now. Nursing was regarded as one of the functions of the Church. Miss Cavell was a Protestant as well as a foreigner. She was felt to be a rival of the nuns and sisters working under religious vows.

The authorities of the Catholic Church looked coldly upon an enterprise which, from their point of view, had an aspect of irreligion and freethinking. But it was not long before the Matron's efficiency and tact carried the day. A well-known priest trusted himself to the English lady. His tribute to her devotion and skill brought public opinion to her side. In 1909 she established a training home for nurses. The authorities recognised and encouraged her; and shortly before the outbreak of war she was provided with a modern and well-equipped building.

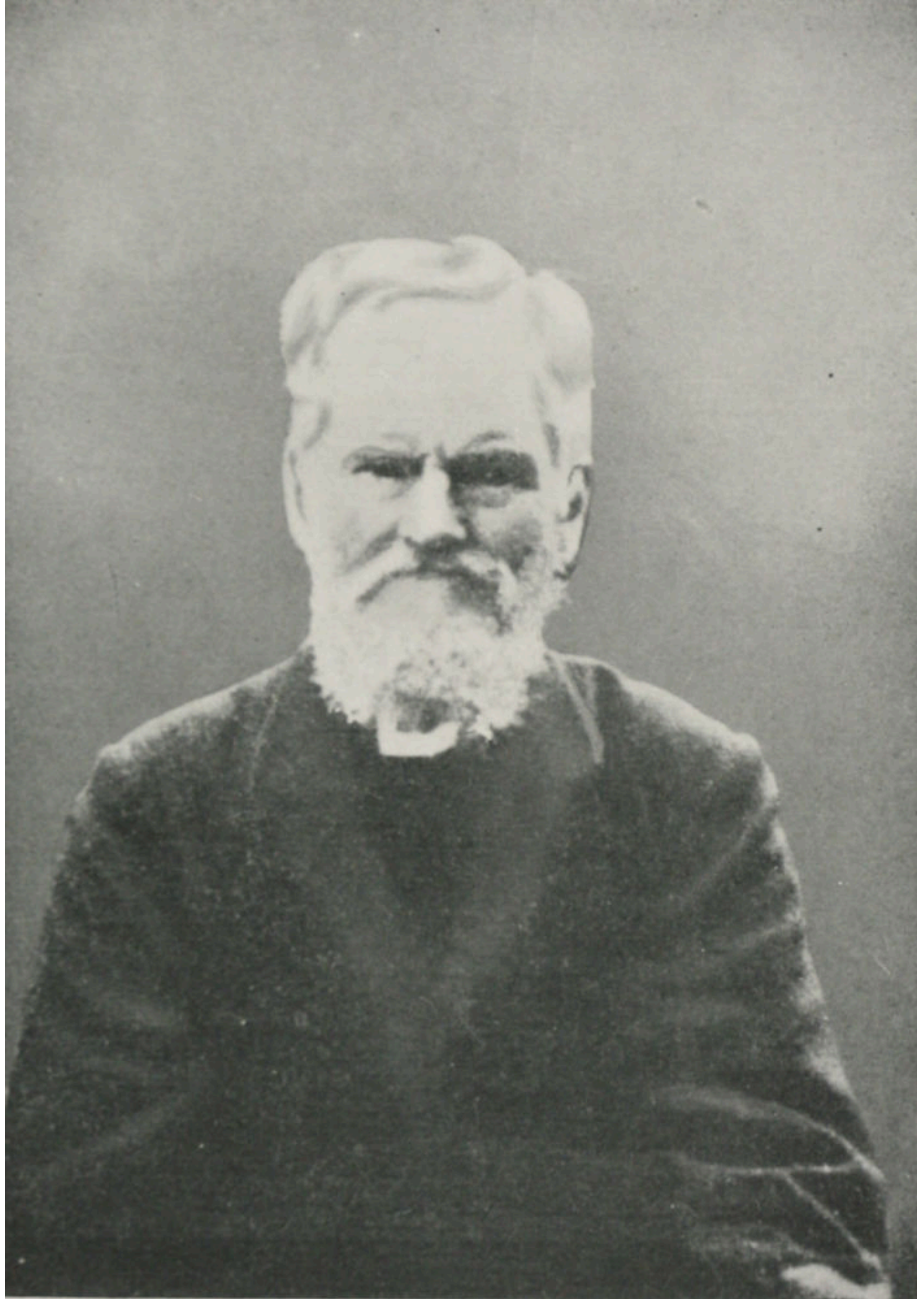
The first warning of the war came when she was spending a holiday at home with her mother at Norwich. During these years in Brussels two holidays a year had been spent in England. They were happy halting places in a rough journey. What made them so pleasant to Edith Cavell was that she could spend them with her mother.

The love of the younger woman for the old was one of the most beautiful aspects of her character. "People may look upon me as a lonely old maid," she said once to a friend; "but with a mother like mine to look after, and, in addition, my work in the world which I love, I am such a happy old maid that everyone would feel envious of me if they only knew."

That was her secret—her love for her mother and her work. It was that which enabled her to look upon the world as a beautiful garden, where there

was always something to do for sickly plants. The real flowers, and the care of them which could only be given in English holidays, were almost a passion to her from the earliest Rectory days.

Her success as a nurse, both in Brussels and the slums of London, owed three-parts of its efficacy to her overflowing sympathy. "It was her gentle way," said an old patient, "that did most to make me well again; I felt she was a minister of God working for my good." And there are wounded British soldiers who have pressed the doctors to send them back quickly to the firing line. "We will go back willingly," they say, "to avenge this great woman's death."



Daily Mirror Photograph.

THE REV. FREDERICK CAVELL, FATHER OF NURSE CAVELL.



Daily Mirror Photograph.

MRS. CAVELL, MOTHER OF NURSE CAVELL.

Every holiday in England was spent with the aged mother, who looked forward to these meetings as much as the daughter. Without warning, the war broke into the last of these holidays in the full summer of 1914. Edith Cavell made her mind up promptly. Her holiday was not yet over, but she hurried back at once. "My duty is out there," she said; "I shall be wanted."

CHAPTER V.

THE COMING OF THE GERMANS.

We reach now the last year of Edith Cavell's life, for which all the others had been a preparation. When she arrived in Brussels, the Germans were shelling Liége. The gallant little Belgium Army stood drawn up across the path of the invaders. It was believed that the French and British would soon arrive to drive the Germans back. The Belgian Government was still in Brussels. Cheery Burgomaster Max kept order with his Civic Guard. In the autumn of 1915 we are all wiser.

Miss Cavell has herself described, in an article sent home to the *Nursing Mirror*, how the bitter truth came home to Brussels:—

Brussels lay that evening [August 20th] breathless with anxiety. News came that the Belgians, worn out and weary, were unable to hold back the oncoming host who might be with us that night. Still we clung to the hope that the English Army was between us and the unseen peril....

In the evening came the news that the enemy were at the gates. At midnight bugles were blowing, summoning the Civic Guard to lay down their arms and leave the city. Many people were up through the dark hours, and all doors and windows were tightly shut. As we went to bed our only consolation was that in God's good time right and justice must prevail.

The sympathies of Nurse Cavell were all with the Belgians and their Allies. How could it be otherwise? Yet, when the Germans came she spoke with sympathy of the tired and footsore men in the enemy's host:—

On August 21st [she wrote] many more troops came through; from our road we could see the long procession, and when the halt

was called at midday and carts came up with supplies some were too weary to eat, and slept on the pavement of the street.

We were divided between pity for these poor fellows far from their country and their people, suffering the weariness and fatigue of an arduous campaign, and hate of a cruel and vindictive foe bringing ruin and desolation on hundreds of happy homes and to a prosperous and peaceful land.

Some of the Belgians spoke to the invaders in German, and found they were very vague as to their whereabouts, and imagined they were already in Paris; they were surprised to be speaking to Belgians, and could not understand what quarrel they had with them.

I saw several of the men pick up little children and give them chocolate or seat them on their horses, and some had tears in their eyes at the recollection of the little ones at home.

From that date till now we have been cut off from the world....

The German nurses training under Miss Cavell had already left—conducted to the frontier by her to save them the anxiety of being in an enemy capital. At this time the German soldiers were ruthlessly slaughtering Belgian women and children. The new authorities approved of her continuing her work: no longer, since the outbreak of war, a training institution, but a Red Cross Hospital. It is admitted even by her enemies that she threw herself ardently into her work without respect of nationality. Wounded Belgians and Germans were treated alike. Many German officers passed through her hands.

There is now in hospital in England a wounded Belgian who knew Miss Cavell in Brussels in those first days of the German occupation, and who speaks of the universal affection in which she was held.

CHAPTER VI

WEAVING THE NET.

The full story of the next few months of Edith Cavell's life cannot be told until after the war is over. Brussels, as she had written, became cut off from the world. The hospitable old city became a nest of spies. "Newspapers were first stopped, then suppressed, and are now printed under German auspices. The few trains that run for passengers are in German hands, and wherever you go you must have, and pay for, a passport. No one speaks to his neighbour in the tram, for he may be a spy. Besides, what news is there to tell, and who has the heart to gossip, and what fashions are there to speak of, and who ever goes to a concert or a theatre nowadays, and who would care to tell of their all-absorbing anxiety as to how to make ends meet and spin out the last of the savings, or to keep the little mouths at home filled, with the stranger close by?"

The frank, open nature of Edith Cavell was ill-fitted for such an atmosphere of fear and deception. Everyone was "suspect," as in the days of the Paris Terror in 1793. It was enough, as then, to fall under "suspicion of being suspect." Edith Cavell was suspected, and cunning men sought how they might weave a net of accusation around her.

Nurse Cavell was an Englishwoman. That, was the beginning of her offence. I am not here to say she did no wrong. The full significance of her own brave admissions cannot yet be revealed. Her crime was the crime of humanity. The beginning of her offence, to the suspicious German mind, was that she was English and was popular. Everyone spoke of her untiring kindness and unflinching courage. It was enough. She must be dangerous, or all the world would not speak well of her. Nobody spoke well of the German governors of Brussels.

There is reason to believe that Miss Cavell came in contact, once at least, with the terrible Baron Von Bissing, the Governor-General. He formed a

strong opinion of her capacity and dauntless courage. The same head that contrived her secret trial and execution, directed, there is little reason to doubt, the weaving of the web that ensnared her. The cleverest spies in Von Bissing's service were set to watch her. They found out that she had given a greatcoat to a French soldier who afterwards escaped across the Dutch frontier. On another occasion she had given an exhausted Englishman a glass of water. Then the spies said, what was likely enough, that she had given money to Belgians, and that this had enabled them to escape.

In every part of the world these would be simple acts of humanity—for the suspicious Von Bissing they were crimes. "This must be stopped," he ordered.

CHAPTER VII.

ARREST AND SILENCE.

Early in the evening of the 5th of August, a loud knock came to the door of Nurse Cavell's hospital in the Rue de la Culture. Five heavily-footed German soldiers and a corporal stood outside with a police officer. At that very moment the nurse was changing the bandages of a wounded German. The soldiers broke open the door with the butt-ends of their rifles, and rushed into the ward.

At a sign from the police officer—one of the creatures Von Bissing had set to watch the nurse's movements—the corporal seized Miss Cavell roughly. He tore out of her hand the lint with which she was about to bind the wounded man, and began to drag her away.

The Englishwoman, astonished but calm and dignified, asked for an explanation. The answer was a cuff. Von Bissing had not given instructions for any explanation. Nurse Cavell left her hospital for the last time, and was marched through the dark streets to the military prison of St. Gilles.

Three weeks of silence followed. Miss Cavell's friends in England knew nothing of her arrest. It was only by the good offices of a chance traveller from Belgium that the news reached the family near the end of August. At the request of the British Foreign Office, Dr. Page, American Ambassador in London, telegraphed for information to the American Minister in Brussels, Mr. Brand Whitlock.

The gaolers of Edith Cavell had used the interval well. It was decided, even before her arrest, that she was to be executed. But, first of all, seeing that the Louvain methods were grown obsolete, it was necessary to concoct a "case" against her. The spies had not done their work well enough. The greatcoat and the glass of water and the silver coins to hunted men were not

sufficient for a conviction. There was only one method by which Edith Cavell could be convicted. That was from her own mouth.

In England when the meanest felon is arrested he is warned by the officer who reads the charge to him, that he need not make any statement unless he wishes, and that anything he says may be used in evidence against him. In Brussels, under German rule, Edith Cavell's judges deliberately set themselves to extort admissions by which to condemn her.

They refused her an advocate. They prevented communication with any soul who could give her counsel. They surrounded her arrest and imprisonment with secrecy lest any warning of her danger should reach her from outside. They contrived that she should be utterly alone.

To their astonishment they found their business easy. Miss Cavell gave them every help in her power. She had nothing to conceal, she said. She told them every incident which had a bearing on the charge. She supplied dates and details. Instead of the clumsy hearsay of the spies, her accusers had facts given them to build up a lengthy dossier. And when all was admitted it was nothing more than a series of acts of pity.

Those who think of this confession as a woman's weakness are in error. Edith Cavell was no ignorant girl. She well knew what she did. She would have been a better lawyer if she had refused to incriminate herself. She would have been a less noble woman. What she said she said to draw all the blame upon herself. Knowing well that death was the punishment, she did not shrink.

CHAPTER VIII.

THE FALSE FRIEND.

As Von Bissing had arrested Edith Cavell in secret, so he sought to judge her clandestinely. The trial took place before a court-martial on October 7th and 8th, with that of thirty-four other prisoners. Before this time Mr. Brand Whitlock, the American Minister, with his Secretary of Legation, Mr. Hugh Gibson, and his legal adviser, M. de Leval, a Belgian advocate, had stirred themselves actively on Miss Cavell's behalf. The story of how they were deliberately hoodwinked is one of the most ugly features of the case.

For ten days Baron Von der Lancken, the German Political Minister, sent no reply to Mr. Whitlock's appeal for information, and for authority to start the defence. Mr. Whitlock repeated his request on September 10th, but it was not until two days after this date that Baron Von der Lancken replied to the appeal. He set forth in this letter the only official statement ever made by the German authorities as to Miss Cavell's "crime." It is worth reading in his own words:—

She has herself admitted that she concealed in her house French and English soldiers, as well as Belgians of military age, all desirous of proceeding to the front.

She has also admitted having furnished these soldiers with the money necessary for their journey to France, and having facilitated their departure from Belgium by providing them with guides, who enabled them to cross the Dutch frontier secretly.

Miss Cavell's defence is in the hands of the advocate Braun, who, I may add, is already in touch with the competent German authorities. In view of the fact that the Department of the Governor-General, as a matter of principle, does not allow accused persons to have any interviews whatever, I much regret my inability to procure

for Mr. de Leval permission to visit Miss Cavell as long as she is in solitary confinement.

Mr. Braun was a lawyer at the Brussels Appeal Court. As soon as the American Legation received the intimation that he had been appointed as the lawyer, Mr. de Leval wrote, asking him to come to the Legation. Mr. Braun came as requested “a few days later.”

The time was now drawing close when the trial was to come on. Three weeks had already been wasted since the American Embassy in London first took the matter up, and nearly seven weeks had gone by since the arrest. But when at last it appeared as though something was about to be done, another excuse was produced. Mr. Braun’s news was that although he had been asked to defend Miss Cavell by personal friends of hers, he could not do so “owing to unforeseen circumstances.”

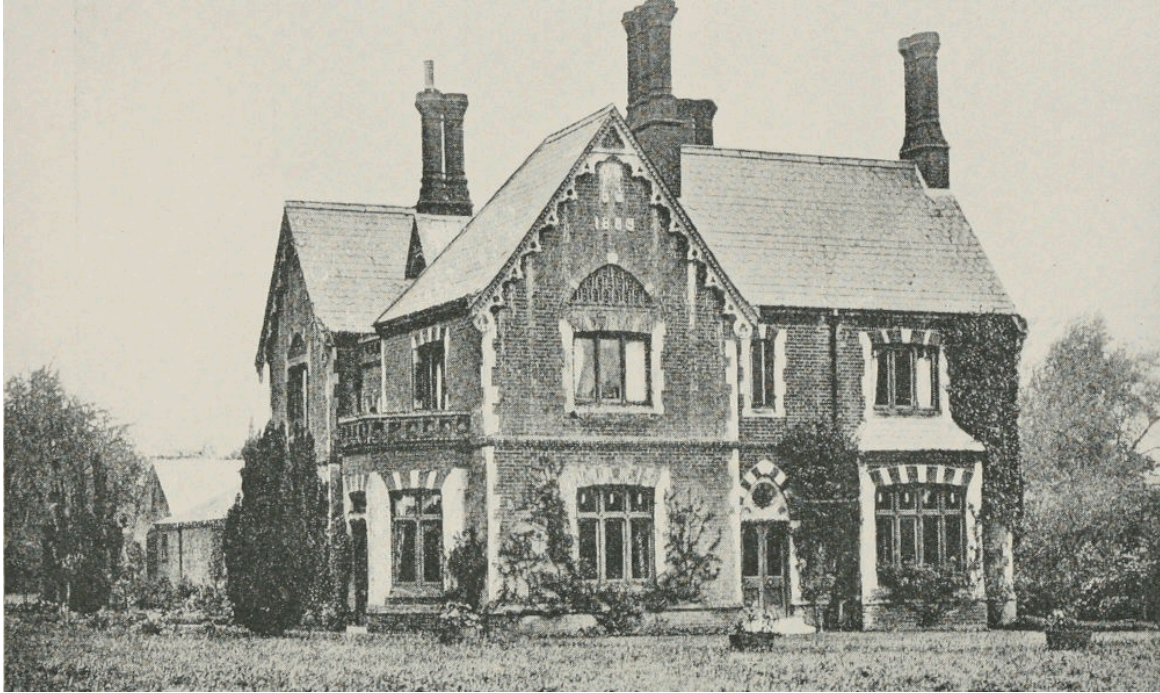
Mr. Braun stated that he had seen another Belgian lawyer, Mr. Kirschen, who had agreed to undertake the defence. Another delay, while Mr. de Leval got into touch with Mr. Kirschen. At last there was to be an opportunity to obtain some details of the accusation. What had Miss Cavell admitted? asked the American counsel. What were the documents upon which the charge was based? What estimate had the lawyer formed of the prospects of an acquittal?

To the astonishment of Mr. de Leval, the lawyer replied that under German military rules he was not allowed to see his client before the trial began. The prosecution had every opportunity of preparing its case. The judges were fully informed of every circumstance that might bias them against the prisoner. But the poor lonely woman in prison could not even see her counsel in private, and all the documents were withheld from his inspection.



*Photo Copyright
Farrington Photo Company.*

**NURSE CAVELL WHEN A CHILD, WITH HER MOTHER AND
ELDER SISTER.**



Daily Mirror Photograph.

THE RECTORY, SWARDESTON, WHERE NURSE CAVELL WAS BORN.

In these circumstances Mr. de Leval decided that he would attend the trial himself. Unfortunately, he did not persist in this decision.

It is extremely doubtful, in view of what happened afterwards, if the authorities would have permitted the presence of a neutral spectator of the administration of German "justice." What induced Mr. de Leval to give way was the consideration of Miss Cavell's interests. Mr. Kirschen urged that the presence of an American at the trial would prejudice the prisoner's chances. The judges would feel they were under supervision, and would be likely to be more severe in consequence. Mr. Kirschen declared that there was not the least chance of a miscarriage of justice, and promised to inform Mr. de Leval of every development of the case.

We may judge of the value of his advocacy from the fact that he afterwards broke all these promises except one. He did tell Mr. de Leval when the trial was coming on. He never made any report of the progress of the trial, although it took two days. He never disclosed what the sentence was. He never informed the only powerful friends of his unhappy client that

she was to be executed unless outside intervention came. And when Mr. de Leval tried to find him he had disappeared.

CHAPTER IX.

TRIAL IN SECRET.

The conspirators had thus succeeded in drawing an impenetrable veil across their wicked purposes.

Practically the only accounts of the trial are those printed in the German newspapers a fortnight after the execution. These tell us that the court-martial was held in the Court of the Brussels Senate-House. The judges are not named. The principal person accused (says the *Hamburger Fremdenblatt*, which in the true German way assesses titles higher than all personal characteristics) was Prince Reginald de Croy, of Belignies, but he had not been found. The Princess Maria, his wife, stood, however, in the dock with Edith Cavell beside her.

Miss Cavell was in the nurse's uniform in which she had been arrested. The white cap covering the back of the head and disclosing the neat dark waved hair beginning to go grey at the sides, was tied beneath the chin with a starched bow. The stiff collar surmounted the white apron. On the nurse's arm was the red cross of her merciful calling. Her clear eyes looked out on a group of enemies. Overfed officers, with thick necks and coarse eyes, faced her from the judge's bench. Soldiers with fixed bayonets stood between the prisoners.

Although she knew her danger, Nurse Cavell did not flinch before her accusers. There was nothing defiant in her look. It was too serene for anger. But the judges must have noted the weakness of the woman they were condemning. She was fragile almost to delicacy. Two months of prison had made her complexion ashy white. She looked about the court with curiosity, and even in this supreme hour had time for a compassionate smile for those who were sharing her peril.

The German papers give us an outline of the prosecution “case.” They allege that Miss Cavell and Prince Reginald de Croy were the two principals in a widespread espionage organisation. Aided by the French Countess of Belleville, they had assisted young Belgian, French, and British soldiers to escape from Belgium. The refugees were taken by different routes to Brussels, hidden in Miss Cavell’s hospital or in a convent, and conducted by night in tramcars out of Brussels, and then by guides to loosely guarded points along the Dutch frontier.

When this statement was ended, Miss Cavell was asked to plead. In a low, gentle voice, contrasting with the harsh accents of her accusers, she replied that she believed she had served her country, and if that was wrong she was willing to take the blame. The lips of some of her fellow-prisoners quivered as they heard these brave words.

Fearlessly, and in quiet, firm tones, Miss Cavell went on to disclose facts which provided chapter and verse for her “crime.” The questions were put in German, then translated by an interpreter into French, which Miss Cavell of course knew well. “She spoke without trembling and showed a clear mind,” an eye-witness afterwards told Mr. de Leval. “Often she added some greater precision to her previous depositions.”

The Military Prosecutor asked her why she had helped these soldiers to go to England. “If I had not done so they would have been shot,” she answered. “I thought I was only doing my duty in saving their lives.”

“That may be very true as regards English soldiers,” responded the prosecutor, “Why did you help young Belgians to cross the frontier when they would have been perfectly safe in staying here?”

The answer to this question is not recorded. “In helping Belgians I help my own country” must have been the thought that rose to her lips.

Other prisoners were asked what they had to say, and among them, M. Philippe Bancq, a Belgian architect, made a memorable plea, fit to put beside Nurse Cavell’s. “I helped young Belgians to escape to join the army,” he said. “As a good Belgian patriot I am ready to lay down my life for my country.” Bancq has since been shot.

The prosecution asked for the death sentence to be passed upon Miss Cavell and eight other prisoners. But “the Judges did not seem to agree.”

Nurse Cavell's heroism appeared to have made some impression on her enemy's hearts.

Sentence was postponed. It seemed as though mercy might prevail.

CHAPTER X.

FIGHTING FOR LIFE.

Between the trial and the sentence some sinister influence intervened. It is a secret of the Germans what that influence was. But we cannot follow the incidents of the last day of Edith Cavell's life without becoming aware that a design had been conceived in some brain to hurry on the last penalty before there was time for a reprieve.

Mr. de Leval had heard privately on the evening before (Sunday, October 10th) that the trial was over, and that the death sentence had been demanded. The trial had ended on Friday, but Mr. Kirschen, the lawyer, did not report to Mr. de Leval as he had promised. Neither on Saturday nor Sunday could Mr. Kirschen be found, and he disappears altogether from view after the trial. After fruitless inquiries on Sunday night, Mr. de Leval went to see Baron de Lancken, the German Political Minister. Late at night he succeeded in finding a subordinate, Mr. Conrad, but could obtain no information.

On the Monday morning Mr. de Leval again saw Conrad, who assured him that judgment would not be passed for a day or two, and that the American Legation would be informed as soon as this took place. No word came from Conrad all day, and none from Kirschen. The lawyer was "out till afternoon" Mr. de Leval was told when he called at the house.

On this crucial day Mr. Brand Whitlock, the American Minister, was ill in bed. But he was working hard to save Miss Cavell's life. With Mr. Hugh Gibson, Secretary of the Embassy, he prepared a letter to Baron Von der Lancken pointing out that Miss Cavell had spent her life in alleviating the sufferings of others, had bestowed her care as freely on the German soldiers as on others. "Her career as a servant of humanity," he wrote, "is such as to inspire every pity, to call for every pardon." And with his own hand the Minister wrote this touching appeal:—

My dear Baron,—I am too ill to present my request to you in person, but I appeal to your generosity of heart to support it and save this unfortunate woman from death. Have pity on her!

Throughout the day the Legation made repeated inquiries of the German authorities to know if sentence had been passed. The last was at twenty minutes past six. Mr. Conrad then stated that sentence had not been pronounced, and renewed his promise to let the Legation know as soon as there was anything to tell.

At five o'clock that same afternoon the death sentence had been passed in secret. The execution was fixed for the same night.

Three hours later the American Legation learned privately of the deception. Mr. Gibson found the Spanish Ambassador, the Marquis de Villalobar, and went with him to Baron Von der Lancken's house. The Baron was "out" as the advocate had been in the morning. Neither was any member of his staff at home. An urgent message was sent after the Baron. He returned with two of his staff at a little after ten. The execution was to take place at two next morning.

Lancken at first refused to believe that the death sentence had been passed. Even if it had the execution would not be that night, and "nothing could be done until next morning." But the two diplomatists refused to be put off. They compelled the Baron to make inquiries, and when he was obliged reluctantly to admit the truth, they urged him to appeal to the Military Governor, Von Bissing.

At eleven o'clock Von der Lancken came back from seeing Von Bissing. He brought a refusal. The Governor-General had acted "after mature deliberation" and refused to listen to any plea of clemency. For an hour longer the two devoted Ministers pleaded for the woman's life. It was in vain. There was no appeal. "Even the Emperor could not intervene." Edith Cavell was doomed. At midnight her friends departed in despair.

CHAPTER XI

THE LAST SCENE.

The most beautiful moments in Edith Cavell's life were those which preceded her martyrdom. At eleven o'clock the British chaplain in Brussels, the Rev. H. S. T. Gahan, was admitted to the cell in which she had spent the past ten weeks.

He found her calm and resigned. She told him that she wished all her friends to know that she gave her life willingly for her country. And then she used these imperishable words:—

I have no fear nor shrinking. I have seen death so often that it is not strange or fearful to me.

I thank God for this ten weeks' quiet before the end. Life has always been hurried and full of difficulty. This time of rest has been a great mercy.

They have all been very kind to me here. But this I would say, standing as I do in view of God and eternity, I realise that patriotism is not enough. I must have no hatred or bitterness to anyone.

After this the chaplain administered the Holy Communion. The clergyman repeated the words of "Abide with me." She joined in at the words:

Hold Thou Thy cross before my closing eyes;
Shine through the gloom, and point me to the skies;
Heaven's morning breaks, and earth's vain shadows flee.
In life, in death, O Lord, abide with me.

At two o'clock in the morning they led her out with bandaged eyes to the place of execution. The firing party stood ready with loaded rifles. At this last moment her physical strength was not a match for her heroic spirit. She

fell in a swoon. The officer in charge of the soldiers stepped forward and shot her as she lay unconscious.

Before the day dawned her body was laid to rest in the land occupied by her enemies, whom with her last breath she forgave.

CHAPTER XII.

EDITH CAVELL'S MESSAGE.

The circumstances of Edith Cavell's death became known in England on Trafalgar Day. The news reached the public through the newspapers the following morning. No one who was in London that day will ever forget the sense of horror that ran through the land. From early morning a dense crowd of people thronged round the only tangible symbol of her martyrdom, a wreath of laurels placed among those of the sailors who died for England. The armless Nelson looked down from his column upon the memorial of a weak woman who had borne witness to his immortal message. The seaman and officers who had died in the long-drawn-out Trafalgar, welcomed her, as it seemed, to their company. And in the mist and rain of a London October day the true spirit of England leaped again to life.

"This will settle the matter, once for all, about recruiting in Great Britain," said the Bishop of London. "There will be no need now of compulsion." All day men competed in their eagerness to join the Army. Continual recruiting meetings were held round the base of Nelson's monument. In Nurse Cavell's native village every eligible man joined the Forces next day. A tide of enthusiasm set in which has not yet waned.



Daily Mirror Photograph.

NURSE CAVELL IN HER GARDEN.



*Photo Copyright
Farrington Photo Company.*

NURSE CAVELL, FROM A PHOTOGRAPH TAKEN IN BRUSSELS.

Consternation and horror expressed themselves in every part of the world. The *Staats Zeitung*, the Germans' newspaper in New York which defended the sinking of the "Lusitania," disowned the crime. "This is

savagery,” said neutral Holland. “The killing of Miss Cavell will be more expensive than the loss of many regiments,” said a great American journal. “The peace of the future would be incomplete and precarious,” wrote the Paris *Figaro*, “if crimes like these escaped the justice of peoples.” The King and Parliament gave voice to England’s sentiment.

Yet the Germans were so little conscious of what they had done that they made the deed blacker by excuses. “We hope it will serve as a warning to the Belgians,” wrote the Berlin official paper, the *Vossische Zeitung*. “I know of no law in the world which makes distinction between the sexes,” said Herr Zimmermann, the Kaiser’s Under-Secretary for Foreign Affairs. And they filled the cup of their infamy by refusing to surrender Nurse Cavell’s body to her friends.

It is fitting that there should be some personal memorial to this heroic life. One such, by the thoughtful initiative of Queen Alexandra, is to be provided in the shape of an Edith Cavell Nursing Home at the London Hospital where Miss Cavell was trained. The *Nursing Mirror*, for which she wrote her last article, urges the institution of a Cavell Cross for Heroism, a decoration for women only.

An Empire Day of Homage has been proposed. A great national memorial service has been held in St. Paul’s Cathedral.

But the best memorial to Edith Cavell will be the determination of her fellow-citizens to put aside self in willing service to their country.

APPENDIX.

SIR EDWARD GREY'S SCATHING COMMENT.

Sir EDWARD GREY to the AMERICAN AMBASSADOR in London.

Foreign Office, October 20th, 1915.

The Secretary of State for Foreign Affairs presents his compliments to the United States Ambassador, and has the honour to acknowledge the receipt of His Excellency's note of the 18th instant enclosing a copy of a despatch from the United States Minister at Brussels respecting the execution of Miss Edith Cavell at that place.

Sir E. Grey is confident that the news of the execution of this noble Englishwoman will be received with horror and disgust not only in the Allied States, but throughout the civilised world.

Miss Cavell was not even charged with espionage, and the fact that she had nursed numbers of wounded German soldiers might have been regarded as a complete reason in itself for treating her with leniency.

The attitude of the German authorities is, if possible, rendered worse by the discreditable efforts successfully made by the officials of the German Civil Administration at Brussels to conceal the fact that sentence had been passed and would be carried out immediately. These efforts were no doubt prompted by the determination to carry out the sentence before an appeal from the finding of the court-martial could be made to a higher authority, and show in the clearest manner that the German authorities concerned were well aware that the carrying out of the sentence was not warranted by any consideration.

Further comment on their proceedings would be superfluous.

In conclusion, Sir E. Grey would request Mr. Page to express to Mr. Whitlock and the staff of the United States Legation at Brussels the grateful

thanks of His Majesty's Government for their untiring efforts on Miss Cavell's behalf. He is fully satisfied that no stone was left unturned to secure for Miss Cavell a fair trial, and when sentence had been pronounced a mitigation thereof.

Sir E. Grey realises that Mr. Whitlock was placed in a very embarrassing position by the failure of the German authorities to inform him that the sentence had been passed and would be carried out at once. In order, therefore, to forestall any unjust criticism which might be made in this country he is publishing Mr. Whitlock's despatch to Mr. Page without delay.

THE GERMAN OFFICIAL DEFENCE.

Statement by Herr ZIMMERMANN, German Under-Secretary of State for Foreign Affairs.

It is indeed hard that a woman has to be executed, but think what a State is to come to which is at war if it allows to pass unnoticed a crime against the safety of its armies because it is committed by women. No law book in the world, least of all those dealing with war regulations, makes such a differentiation, and the female sex has but one preference according to legal usage, namely, that women in a delicate condition may not be executed. Otherwise a man and woman are equal before the law, and only the degree of guilt makes a difference in the sentence for a crime and its consequences.

In the Cavell case all the circumstances are so clear and convincing that no court-martial in the world could have reached any other decision. For it concerns not the act of one single person, but rather a well-thought-out, world-wide conspiracy, which succeeded for nine months in rendering the most valuable service to the enemy, to the disadvantage of our army.

SEVERITY THE ONLY WAY.

Countless British, Belgian and French soldiers are now again fighting in the Allies' ranks who owe their escape from Belgium to the activity of the band now sentenced, at the head of which stood Miss Cavell.

With such a situation under the very eyes of the authorities only the utmost severity can bring relief, and a Government violates the most elementary duty towards its army that does not adopt the strictest measures. These duties in war are greater than any other.

All those convicted were fully cognisant of the significance of their actions. The court went into just this point with particular care, and acquitted several co-defendants because it believed a doubt existed regarding their knowledge of the penalties for their actions.

I admit, certainly, that the motive of those convicted was not unnoble, that they acted out of patriotism; but in war time one must be ready to seal one's love of Fatherland with one's blood.

TO FRIGHTEN THE OTHERS.

Once for all, the activity of our enemies has been stopped, and the sentence has been carried out to frighten those who might presume on their sex to take part in enterprises punishable with death. Should one recognise these presumptions it would open the door for the evil activities of women, who often are handier and cleverer in these things than the craftiest spy.

If the others are shown mercy it will be at the cost of our army, for it is to be feared that new attempts will be made to injure us if it is believed that escape without punishment is possible or with the risk of only a light sentence.

Only pity for the guilty can lead to a commutation. It will not be an admission that the executed sentence was too severe, for this, harsh as it may sound, was absolutely just, and could not appear otherwise to an independent judge.

It is asserted that the soldiers told off to carry out the execution refused at first to shoot, and finally fired so faultily that an officer had to kill the accused with his revolver.

No word of this is true. I have an official report of the execution, in which it is established that it took place entirely in accordance with the established regulations, and that death occurred immediately after the first volley, as the physician present attests.

W., L. & Co., Printers, Clifton House, Worship St., E.C.
Telephone No. 3121 London Wall.

*** END OF THE PROJECT GUTENBERG EBOOK THE
MARTYRDOM OF NURSE CAVELL ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.